

THE HIGH COURT OF SIKKIM: GANGTOK
(Civil Extra Ordinary Jurisdiction)

SINGLE BENCH : THE HON'BLE MR. JUSTICE A. MUHAMED MUSTAQUE,
CHIEF JUSTICE

WP(C) No.58 of 2023

- 1. Shri Narayan Dhungel,**
Aged about 28 years,
S/o Shri Ranga Lall Dhungel,
R/o Daramdin, West Sikkim-737121.

- 2. Shri Om Prakash Dhungel,**
Aged about 37 years,
S/o Shri Ranga Lall Dhungel,
R/o Daramdin, West Sikkim-737121.

- 3. Miss Kamala Dhungel,**
Aged about 33 years,
D/o Shri Ranga Lall Dhungel,
R/o Daramdin, West Sikkim-737121.

... Petitioners

versus

- 1. The Land Revenue Department,**
Through the Secretary,
Government of Sikkim,
Tashiling Secretariat, Gangtok,
Sikkim-737101.

- 2. The District Collector,**
Office of the District Collectorate,
Namchi District, Namchi,
Sikkim-737126.

- 3. The Additional District Collector,**
Office of the District Collectorate,
Namchi District, Namchi,
Sikkim-737126.

Respondent Nos.4, 4(a), 4(b), 4(c) and 4(d) deleted *vide* order dated 14.11.2025.

- 5. Yagya Prasad Dhungel,**
S/o Krishna Lall Dhungel
R/o Lungchok,
West Sikkim-737121.

- 6. Esmiriti Dhungel,**
D/o Yagya Prasad Dhungel,
R/o Lungchok,
West Sikkim-737121.

7. Gitanjali Dhungel,
D/o Yagya Prasad Dhungel,
R/o Lungchok,
West Sikkim-737121.

... Respondents

Appearance:

Mr. R. P. Sharma with Mr. Sajal Sharma, Ms. Shreya Sharma, Ms. Kajal Rai, Mr. Beepal Rai and Mr. Nishant Agarwal, Advocates for the Petitioners.

Mr. Sujan Sunwar, Assistant Government Advocate for the Respondent Nos.1 to 3.

Ms. Mingma Lhamu Sherpa, Legal Aid Counsel for the Respondent Nos.5 to 7.

Judgment Reserved on :
Judgment Pronounced on : 11.08.2026
Judgment Uploaded on : 11.08.2026

JUDGMENT (ORAL)

(A. Muhamed Mustaque, C.J.)

1. This Writ Petition was filed challenging the order of the Additional District Magistrate, Namchi District, Sikkim dated 23.02.2022 and the order of the Appellate Authority dated 04.08.2023. *Vide* the orders, the Certificate of Identifications (COIs) issued to the Petitioners were cancelled. The Petitioners had applied for the COIs as the natural legal heirs of late Ranga Lall Dhungel.

2. The COIs were issued after conducting an inquiry. Thereafter, the nephews of late Ranga Lall Dhungel and the Sikkim Suraksha Samiti lodged a complaint. In the complaint, it was alleged that COIs were obtained by misrepresentation or fraud and that the Petitioners had impersonated themselves as the biological legal heirs of late Ranga Lall Dhungel. The Additional District Magistrate cancelled the COIs relying on oral testimony and some report of the authority concerned. The oral testimony shows that late Ranga Lall Dhungel was a bachelor at the time of his death and was unmarried. The report relied upon has not been furnished anywhere.

3. Anyway, by considering the nature of the orders, this Court is of the view that this matter is required to be remanded back for fresh consideration.

4. The Learned Counsel for the Petitioners relied on an affidavit which had not been produced before this Court to show that late Ranga Lall Dhungel was married to late Goma Devi. It is submitted that the Petitioners were born in the wedlock.

5. First of all, it has to be found out whether Petitioners are biological offsprings of the marriage. It is necessary to consider whether there was a marriage between late Ranga Lall Dhungel with late Goma Devi. An opportunity should be given to the Petitioners to adduce evidence. The Petitioners should also be given a copy of the report which was relied upon by the Additional District Magistrate while arriving at a conclusion to cancel the COIs.

6. After giving an opportunity to the Petitioners as above, a fresh decision shall be taken.

7. Needless to say, the Respondents shall also be heard in that process.

8. Accordingly, the impugned orders are set aside for the reasons stated above.

9. Needful shall be done within a period of three months.

10. It is made clear that both parties should be given opportunities to adduce evidence. The Additional District Magistrate shall also serve a copy of the report relied upon in the matter for cancellation of the COIs to the Petitioners as well as the other Respondents.

Chief Justice